

25NWCV01342 25NWCV01342

County: los-angeles

Division: Civil Law and Motion

Department: R

Hearing date: 2026-07-14

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#19

DIMOND v. CITY OF WHITTIER, ET AL.

CASE NO.: 25NWCV01342

HEARING: Tuesday, July 14, 2026, at 9:30 AM

Prospective Intervenor XL Insurance America, Inc.'s Motion
to Leave to file Complaint-in-Intervention is GRANTED.

XL Insurance America, Inc. Proposed Complaint-in-Intervention attached as Exhibit
A to Katherine A. Sandoval's Declaration is NOT deemed filed and
served as of the date of the issuance of this Order.

XL Insurance
America, Inc. is ORDERED to FILE and SERVE the Complaint-in-Intervention
within 5 days of the date of the Court's issuance of this Order.

Moving Party to give notice.

BACKGROUND

On April 11, 2025, Plaintiff John Rae Dimond ("Plaintiff")
filed this action against Defendants CITY OF WHITTIER; ANTHONY CIRINO; and DOES
1 to 20.

Plaintiff's Complaint alleges the following causes of

action:

(1) Motor
Vehicle and

(2) General
Negligence and Negligence Per Se

Plaintiff alleges, "On March 13, 2024, Plaintiff JOHN RAE DIMOND ("Plaintiff") was operating an automated side loader garbage truck in Savage Canyon Landfill located at 13919 Penn St., Whittier, CA 90602. At the same time and location, Defendants ANTHONY CIRINO and DOES 1 to 10, operating a bulldozer owned by, with the permission of, and while in the course and scope of his employment for Defendants CITY OF WHITTIER and DOES 11 to 20 (collectively "Defendants"), were traveling directly behind Plaintiff at Savage Canyon Landfill in Whittier, CA 90602, failed to realize Plaintiff was slowed and/or stopped ahead of them, failed to slow down and/or stop their bulldozer, failed to maintain a safe distance from Plaintiff's truck to ensure Defendants could slow and stop their bulldozer to avoid crashing into Plaintiff's truck, and failed to drive their bulldozer at a safe speed to avoid crashing into Plaintiff's truck. As a result, Defendants crashed their bulldozer into the rear of Plaintiff's truck (the "Collision")." (Complaint at p. 5.)

On April 8, 2026, prospective intervenor XL Insurance America, Inc. ("Insurance") filed the instant motion for leave to file a Complaint-in-Intervention.

Motion for Leave to Intervene

The Court must grant intervention where an applicant: (1) files a timely application; (2) claims an interest relating to the subject of the action; (3) is so situated that the disposition of the action may impair or impede their ability to protect that interest; and (4) demonstrates that an existing party does not adequately represent their interest. (CCP § 387(d)(1)(B).)

The Court shall permit a nonparty to intervene in the action if a provision of law confers an unconditional right to intervene. (CCP § 387(d)(1)(A).)

If either the employee or the employer brings an action against such third person, he shall forthwith give to the other a copy of the complaint by personal service or certified mail. Proof of such service shall be filed in such action. If the action is brought by either the employer or employee, the other may, at any time before trial on the facts, join as party plaintiff or shall consolidate his action, if brought independently. (Labor Code § 3853.)

Here, Insurance provided workers compensation insurance to Arakelian Enterprises AKA Athens ("Employer"), Plaintiff's employer. Plaintiff filed for a worker's compensation claim and Insurance paid Plaintiff \$263,445.34.

Insurance's application is timely because the case is still in litigation and Insurance's intervention will not delay or disrupt the proceedings. There have been no substantial proceedings in the instant action, and the matter is not set for trial. Lastly, there is no existing party that adequately represent Insurance's interest. The Court finds all elements of mandatory intervention are met.

Insurance's unopposed motion to intervene is GRANTED.